

Stereo.HCJDA 38.
Judgment Sheet
LAHORE HIGH COURT
RAWALPINDI BENCH, RAWALPINDI
JUDICIAL DEPARTMENT

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C.R.No.569-D of 2017

ZUBAIR WAHID KHAN.

Versus

TOUSEEF ALAM.

JUDGMENT

Dates of hearing: **05.12.2024, 11.02.2025 & 12.02.2025**

Petitioner by: Agha Muhammad Ali, Advocate.

Respondent: Mr. Abdul Rasheed Awan, Advocate.

Date of decision: **12.02.2025.**

MIRZA VIQAS RAUF, J. This single judgment shall govern the titled petition as well as C.R.No.1083-D of 2017 and R.F.A No.315 of 2023 on account of involvement of similar questions of fact and law.

2. Before pondering upon the moot points involved herein, it would be apposite to first have a factual resume involved in all these matters. It would not be out of context to mention here that facts and proposition of law involved in subject petition and C.R.No.1083-D of 2017 are similar and akin. Both these petitions are arising out of consolidated judgment and decree dated 30th March, 2017, whereby the learned Additional District Judge, Rawalpindi proceeded to dismiss the appeals preferred by the petitioner as well as respondent therein and affirmed the judgment and decree dated 12th May, 2012 passed by the learned Civil Judge, Rawalpindi.

3. Touseef Alam, (respondent) instituted a suit for recovery averring therein that he is a retired employee and after his retirement and getting pensionary benefits, he started his practice in income tax laws. It is asserted that Zubair Waheed Khan, (petitioner) approached him and pretended himself to be owner of commercial plot measuring 4-Marla located at Tipu Boulevard, Phase-II, situated in Defence Housing Authority, Rawalpindi (hereinafter referred to as “**D.H.A**”). As per averments contained

in the plaint, upon inducement of petitioner, the respondent entered into an agreement with him on 3rd July, 2004 against sale consideration of Rs.10,500,000/- out of which he paid an amount of Rs.20,00,000/- as earnest money in lieu whereof the petitioner agreed to transfer the suit plot after obtaining allotment letter from **D.H.A** and clearing all the liabilities. It is canvassed by the respondent in the plaint that the petitioner, however, did not fulfill his obligations, which prompted him to institute the suit. Suit was resisted by the petitioner, who submitted his written statement, controverting the factual assertions contained in the plaint. The petitioner also raised legal objection with regard to the maintainability of the suit and sought its dismissal. From the divergent pleadings of the parties, multiple issues were framed whereafter evidence of both the sides was recorded and ultimately suit was partly decreed, directing the petitioner to return the earnest money amounting to Rs.20,00,000/- to the respondent forthwith by way of judgment and decree dated 12th May, 2012. Feeling dissatisfied, both the sides preferred their appeals before the learned Additional District Judge but remained unsuccessful, hence both these revision petitions.

4. R.F.A No.315 of 2023 emanates from the order and decree dated 12th October, 2023, whereby learned Civil Judge Class-I, Rawalpindi proceeded to reject the plaint of the suit for specific performance and injunction instituted by the **D.H.A** (appellant in R.F.A No.315 f 2023) on the ground that the appellant since instituted the suit during the pendency of the previous suit, so it is barred by law and as such plaint was rejected. It appears from the record that both these petitions and appeal are before us on account of order passed in C.R.No.427-D of 2022 wherein a notice under Order XXVIIA of the Code of Civil Procedure (V of 1908) (hereinafter referred to as “**Code**”) was issued to the learned Advocate General for Punjab by way of order dated 12th June, 2024 and at the same time both these petitions were directed to be clubbed with the same. Since we were also seized with R.F.A No.315 of 2023, so on account of involvement of similar question in the appeal, by way of order dated 21st November, 2024, it was observed that the appeal since involves the question, which is already under consideration in C.R.No.427-D of 2022, so office to list out this appeal alongwith aforementioned civil revision. It would not be out of context to mention here

that during the arguments, a consensus, however, developed inter se all in attendance that C.R.No.427-D of 2022 has no nexus with these matters, so by way of order dated 11th February, 2025, we directed the office to de-club the said petition from cases in hand.

5. Now adverting to the question involved in both these petitions and connected appeal, we have noticed that the common legal question involved herein is as to what would be the effect of previously instituted suit upon the subsequent suit, if it is instituted during the pendency of the former. In terms of notice under Order XXVIA of the **Code**, learned Advocate General for Punjab addressed the Court and submitted that allowing a party to institute a suit for the same cause during the pendency of previous suit would amount to frustrate the law. He added that in presence of section 12 of the **Code**, such a suit cannot proceed. In support of his contentions, learned Advocate General for Punjab relied upon HASHIM KHAN v. NATIONAL BANK OF PAKISTAN, HEAD OFFICE AT I.I. CHUNDRIGAR ROAD, KARACHI AND BRANCH OFFICE AT M.A. JINNAH ROAD, QUETTA (PLD 2001 Supreme Court 325) and Mian MUHAMMAD IQBAL v. Mir. MUKHTAR HUSSAIN and others (1996 SCMR 1047). Learned Advocate General for Punjab also points out certain distinguishing features of the law enunciated in GHULAM NABI AND OTHERS v. Seth MUHAMMAD YAQUB AND OTHERS (PLD 1983 Supreme Court 344).

6. Agha Muhammad Ali Khan, Advocate representing the petitioner submitted that the respondent initially instituted a suit for specific performance, which remained pending but during the pendency, second suit was instituted seeking recovery of amount, which was not proceedable at all. He added that first suit was ultimately dismissed for non-prosecution and as such the respondent was precluded to proceed with the suit. Learned counsel, in support of his contentions, made reference to section 12 and Order XXIII of the **Code**. It is contended with vehemence that suit was decreed partly by the trial Court without adverting to the material pieces of evidence. Learned counsel emphasized that the concurrent findings are tainted with material irregularities.

7. On the contrary, Mr. Abdul Rasheed Awan, Advocate representing the respondent submitted that suit is not barred by any law. He added that in the circumstances, Order II Rule 2 of the **Code** would not be attracted as in the previous suit, the respondent claimed specific performance of agreement to sell for which relief he was not entitled. Learned counsel argued with vehemence that in presence of overwhelming evidence in support of claim of the respondent, the suit should have been decreed in toto. Learned counsel emphasized that the petitioner since committed fraud with respondent, so he is precluded to take advantage of his own wrong. In support of his contentions, learned counsel placed reliance on GHULAM NABI AND OTHERS v. Seth MUHAMMAD YAQUB AND OTHERS (PLD 1983 Supreme Court 344) and JEEWAN SHAH v. MUHAMMAD SHAH and others (PLD 2006 Supreme Court 202).

8. We have noticed that at the time of hearing of the case yesterday, learned counsel for **D.H.A** was in attendance being appellant in R.F.A No.315 of 2023 but today he has not entered appearance. We, thus, are inclined to observe that we are not bound to wait for the counsel, who himself opted not to join the proceedings. Even otherwise, the legal question involved in the appeal is same as in the revision petitions.

9. Heard. Record perused.

10. The first and foremost question, which requires determination by us is related to the competency of the suit instituted during the pendency of previous. Before advertng to the core issue, it would be advantageous to observe that it is an admitted position that in the first instance, the respondent instituted a suit for specific performance on the basis of agreement to sell Exh.P1 and during the pendency of first suit, the present suit for recovery was instituted wherein respondent sought a decree for recovery of an amount of Rs.40,00,000/- being the double of the amount of sale consideration received by the petitioner from him. In the connected R.F.A, **DHA** instituted a suit for specific performance of agreement to sell and injunction when a similar suit was already pending before the Civil Court.

11. Section 26 of the **Code** provides the mode and manner of institution of suit and it says that every suit shall be instituted by the

presentation of plaint or in such manner as may be prescribed. Order VI of the **Code** deals with the pleadings in generic whereas Order VII is specifically articulated to deal with plaint. Order II of the **Code**, on the other hand, prescribes the manner of framing of suit and in terms of Rule 1, it has been made obligatory that every suit shall as far as practicable be framed so as to afford ground for final decision upon the subjects in dispute and to prevent further litigation concerning them.

12. Before proceeding further in the matter, it is apposite to observe that section 12 of the **Code** places a bar to further suit and in terms of sub-section 1, it is laid that where a plaintiff is precluded by rules from instituting a further suit in respect of any particular cause of action, he shall not be entitled to institute a suit in respect of such cause of action in any Court to which this **Code** applies. In this backdrop, we when again revert to Order II of CPC, we cannot lose sight of Rule II, which ordains that “suit to include the whole claim”. For ready reference and convenience, same is reproduced below: -

2. Suit to include the whole claim.-(1) Every suit shall include the whole of the claim which the plaintiff is entitled to make in respect of the cause of action; but a plaintiff may relinquish any portion of his claim in order to bring the suit within the jurisdiction of any Court.

Relinquishment of part of claim.-(2) Where a plaintiff omits to sue in respect of, or intentionally relinquishes, any portion of his claim, he shall not afterwards sue in respect of the portion so omitted or relinquished.

Omission to sue for one of several reliefs. (3)-A person entitled to more than one relief in respect of the same cause of action may sue for all or any of such reliefs; but if he omits, except with the leave of the Court, to sue for all such reliefs, he shall not afterwards sue for any relief so omitted.

(underlining supplied for emphasis)

From the bare reading of the above referred provision of law, it clearly manifests that a plaintiff while instituting a suit is obliged to include the whole claim for which he is entitled in respect of a cause of action unless he relinquishes any portion thereof in order to bring the suit within the jurisdiction of the Court. In terms of sub-clause (2), where a plaintiff omits to sue or intentionally relinquishes any portion of claim, he/she is precluded to sue in respect of such omitted or relinquished portion afterwards. Sub-clause

(3) envisages that a person entitled to more than one relief in respect of the same cause of action may sue for all or any of such reliefs; but if he omits, except with the leave of the Court, to sue for all such reliefs, he shall not afterwards sue for any relief so omitted.

13. It is apparent from the record that first suit was instituted on the basis of same agreement to sell upon which second suit is rested. In order to wriggle out of the implication of Order II Rule 2 of the **Code**, it is contention of learned counsel for the respondent that said provision would only come into play when plaintiff is entitled for the relief claimed in the first suit. He submitted that since agreement to sell was unauthorizedly executed by the petitioner and there was no proper description of the property mentioned therein, so specific performance cannot be termed as the actual relief, suffice to observe that we when examined the contents of the suit for specific performance instituted by the respondent, it is noticed that in the said suit, the respondent not only made party to the petitioner but also to the original allottee Asim Raza in whose favour, **D.H.A** allotted the suit plot. The respondent also acknowledged the agreement interse the petitioner and original allottee, Asim Raza. While appearing as PW-1, the respondent duly acknowledged these material aspects in the following words: -

یہ درست ہے کہ ExhP1 میں نے پوری طرح سمجھنے اور پڑھنے کے بعد دستخط کیا تھا۔ یہ درست ہے کہ ExhP1 میں مذکور پلاٹ فروخت کرنے کے لئے ذہیر و حید نے میرے ساتھ ExhP1 اس پلاٹ کو Competent to Sale آدمی کے طور پر معاہدہ کیا اور ظاہر کیا تھا۔ یہ درست ہے کہ میرے ساتھ مدعا علیہ کا معاہدہ کمرشل پلاٹ 4 مرلہ ٹیپو بلیوارڈ DHA فیز II کا ہوا تھا۔ یہ درست ہے کہ معاہدہ مسین ٹیپو بلیوارڈ کا نہ ہوا تھا، ٹیپو بلیوارڈ کا ہوا تھا از خود کہہ کہ مسین کہہ جائے گا۔ یہ غلط ہے کہ اُسے مسین نہ کہہ جائیگا۔ یہ درست ہے کہ پلاٹ مذکور کا الاٹمنٹ لیٹر مجھے مورخہ 22-09-04 کو مہیا کر دیا گیا تھا۔

The respondent is, thus, precluded to take inconsistent pleas and to approbate and reprobate in the same breath on the principle of estoppel embodied in Article 114 of the Qanun-e-Shahadat Order, 1984. Reference to this effect can be made to MUBASHAR JAVED and others v. PROVINCE OF PUNJAB and others (PLD 2022 Lahore 817). The relevant extract from the same is reproduced below: -

“15. Moreover, this Court in "JDW Sugar Mills Ltd. and others v. Province of Punjab and others" (PLD 2017 Lahore 68), has held that "When a party takes an inconsistent position in the same case or in a prior case, the principle of judicial estoppel should be applied. Judicial estoppel is an equitable doctrine which precludes a party from taking inconsistent positions before the Court. It protects the integrity of the judicial system and not of the litigant. It seeks to ensure respect for judicial proceedings and avoid inconsistency and abuse of process. Under the doctrine of judicial estoppel a court can stop a party from taking up contradictory stances because it is clearly inconsistent with the previous position taken by that party before another Court. The application of judicial estoppel depends upon the facts and circumstances of each case. When a party puts forth a position, as a matter of fact in one case and is successful in that assertion, that party is estopped from asserting a different position on the same facts in the second case."

14. Before us, learned counsel for the respondent, while making reference to Order XXIII Rule 1 of CPC and heavily relying upon GHULAM NABI AND OTHERS v. Seth MUHAMMAD YAQUB AND OTHERS (PLD 1983 Supreme Court 344) submitted that even otherwise there is no legal bar in instituting a second suit during the pendency of previous suit. In order to properly appreciate the contentions, we have taken note of the relevant facts in the said case from where it clearly reveals that plaintiff, in the said case, initially instituted a suit for a mandatory and perpetual injunction restraining the defendant therein from selling the suit property to anyone except himself. Suit was, however, withdrawn on 27th June, 1966 but before that the plaintiff instituted the suit for specific performance on 15th June, 1966. In this backdrop, the Supreme Court of Pakistan observed that earlier suit was since not competent as the relief by way of injunction cannot be extended out of the cause of action, on the basis of which suit was filed, so bar in terms of Order II Rule 2 CPC would not be attracted. The facts in the case of GHULAM NABI AND OTHERS supra are, thus, clearly distinguishable as compared to the present case. Guidance to this effect can be sought from HASHIM KHAN v. NATIONAL BANK OF PAKISTAN, HEAD OFFICE AT I.I. CHUNDRIGAR ROAD, KARACHI AND BRANCH OFFICE AT M.A. JINNAH ROAD, QUETTA (PLD 2001 Supreme Court 325). The relevant extract from the same is reproduced below: -

9. In view of these two documents, we now refer to the provisions of Order II, rule 2, C.P.C. The reading of the said provisions in very clear terms discloses that omission or failure to include any of the reliefs operates as relinquishment of such claim, it is essential that party instituting proceedings

should include all reliefs flowing out of main grievance, otherwise omission would be fatal, as such, it would be essential for the plaintiff to assert claimable reliefs concerning the grievance of cause of action. However, if any such relief which flows out of basic grievance is not claimed or omitted, then such party stands precluded from agitating those reliefs subsequently. The main object of the above provisions is to avoid splitting of claim and restrict multiplicity of litigation in the matter.

It would also be advantageous to refer to the provisions of Order XXIII, rules 1(3) and 2, which read as under:--

- "1. Withdrawal of suit or abandonment of part of claim.--(1) At any time after institution of a suit the plaintiff may, as against all or any of the defendants, withdraw his suit or abandon part of the claim.
- (2) Where the Court is satisfied---
- (a) that a suit must fail by reason of some formal defect, or
- (b) that there are other sufficient grounds for allowing the plaintiff to institute fresh suit for the subject-matter of a suit or part of claim, it may, on such terms as it thinks fit, grant the plaintiff permission to withdraw from such suit or abandon such part of a claim with liberty to institute a fresh suit in respect of the subject-matter of such suit or such part of claim.
- (3) Where the plaintiff withdraws from a suit, or abandons part of claim, without the permission referred to in sub-rule (2), he shall be liable for such costs as the Court may award and shall be precluded from instituting any fresh suit in respect of such subject-matter or such part of the claim.
- (4) Nothing in this rule shall be deemed to authorize the Court to permit one of several plaintiffs to withdraw without the consent of the others.

15. To understand the true object and import of Order II Rule 2 of the **Code**, we can also make reference to the case of Mian MUHAMMAD IQBAL v. Mir MUKHTAR HUSSAIN and others (1996 SCMR 1047). The relevant extract from the same is reproduced below: -

“7. Rule 2 (2) of Order II, C.P.C. postulates that every suit shall include the whole of the claim which the plaintiff is entitled to make in respect of the cause of action, but a plaintiff may relinquish any portion of his claim in order to bring the suit within the jurisdiction of any Court. Sub-rule (2) provides that where a plaintiff omits to sue in respect of, or intentionally relinquishes, any portion of his claim (underlining is ours for emphasis), he shall not afterwards sue, in respect of the portion so omitted or relinquished, Sub-rule (3) lays down that a person entitled to more than one relief in respect of the same cause of action, may sue for all or any of such reliefs; but if he omits, except with the leave of the Court, to sue for any of such reliefs, he shall not afterwards sue for any relief so omitted. The rationale behind Rule 2 (1) (2) (3) of Order II, C.P.C. clearly indicates that the Legislature introduced the provisions to control splitting up of claim and to restrict the multiplicity of suits. In the present case, these provisions are fully attracted, in that, the petitioner

had clearly omitted to sue for recovery of compensation in the earlier suit for specific performance. He could not sue for this relief now which he had omitted in the earlier relief.

8. The learned counsel for the petitioner contends that the expression "cause of action" in Order II, rule 2, C.P.C. means the cause of action for which a suit is brought and that in the instant case the cause of action for specific performance in the earlier suit was distinct from the cause of action qua the compensation for improvement. We do not agree with this submission of the learned counsel for the petitioner. The cause of action in both the suits, namely, one for the specific performance of agreement to sell and the other for compensation of improvement could be joined in one suit and having omitted the latter cause of action, the bar of Order II, rule 2, C.P.C. was fully attracted to the case."

16. In the case of KAMILA AAMIR and another v. ADDITIONAL DISTRICT AND SESSIONS JUDGE and others (PLD 2023 Lahore 601), learned Single Bench of this Court, while interpreting the scope and object of Order II Rule 2 CPC, held as under: -

14. There are three specific terms used in Order II Rule 2 which are required to be interpreted as these shall have bearing on a just decision of this case. These terms are *cause of action*, *claim* and *relief*.

15. The expression *cause of action* has not been defined in the Code although several attempts have been made in the judgments to explain it. Various authorities have referred it to mean that every fact, which if traversed, it would be necessary for the plaintiff to prove to support his right to a judgment by of the court. This definition would generally suffice but it does not necessarily provide a satisfactory answer as to what is the cause of action. This Court shall not make an attempt to define the term *cause of action* in recognition of the fact that the scope thereof is vague and that it must be applied broadly to carry out the functions of the Code which are designed to achieve convenience and efficiency in trial of the suits. This policy of the Code is indubitably brought forth by Order II Rule 1 according to which all matters in dispute between the parties relating to the same transaction be disposed of in a single suit. Generally looking at the provisions of Orders I and II of the Code would make it evident that when the right recognized by law is violated constituting a legal wrong, a cause of action can be said to have arisen. A *fortiori*, it is the legally recognized wrong that creates the right to sue. It is axiomatic that facts which do not represent the existence of right in the plaintiff with a corresponding duty in defendant to observe that right and an infringement of that right or duty is no cause of action. In Stone v. Cass 34 Okla. 5, 124 P. 960, the Court stated that "*There can be no cause of action, unless there is a wrong for which redress is afforded. Nor can there be a subject of action, unless there is a right and a wrong done to it. The right might exist for ages, but is not a subject of action until it is infringed upon. The wrong might be continuous, but is not a cause of action, unless relief is afforded.*" Cause of action thus comprises material facts (to borrow the term from the Code) constituting the right and its infringement which entitles a person to sue the wrongdoer or anyone liable for it. The logical progression of this rule dictates that a cause of action must include a set of primary or operative facts that represent a legally recognized wrong that creates the right to sue

which gives rise to a claim enforceable in court. Each cause of action consists of points the plaintiff must prove, and all these elements must be satisfied before the court can take action. This broad categorization of the rule is in accord with the scheme of the Code.

16. The Indian Supreme Court in the case of *Om Prakash Srivastava v. Union of India and another* 2006 6 SCC 207 expressed the principle of cause of action on the following terms which are not very dissimilar to what has been stated above:

The expression "cause of action" has acquired a judicially settled meaning. In the restricted sense "cause of action" means the circumstances forming the infraction of the right or the immediate occasion for the reaction. In the wider sense, it means the necessary conditions for the maintenance of the suit, including not only the infraction of the right, but also the infraction coupled with the right itself. (Emphasis Added)

17. Order II, Rule 2 requires that a plaintiff must join all *claims* arising from the same set of facts in a single proceeding instead of bringing successive actions. The bar contained in the rule is against *splitting the claim* in respect of the cause of action and not the cause of action itself. A cause of action is simply the technical, legal name representing the facts which give rise to a *claim* enforceable in court. Although the term claim is generally used interchangeably with cause of action, its use within the confines of the rule refers to a right which would be enforceable if decreed by the court. The cause of action signifies and provides the pivotal ingredients for establishing the basis for legal claim and is also relevant for other purposes such as computation of limitation period, determination of the proper forum for filing of claim (jurisdiction) and locus standi etc. In the case of breach of contract, for example, the injured party might sue for damages or specific performance both of which shall be the claims and facts supporting the breach of contract and losses sustained by the injured party shall constitute the *cause of action*. A cause of action broadly speaking is the factual matrix forming basis of the *claim* and it also identifies the legal nature of those claims, which is the technical meaning of a cause of action. This position is best illustrated by 1309489 *Ontario Inc. (formerly known as Xincon Technology (Canada) Inc.) v. BMO Bank of Montreal et al.* 2011 ONSC 5505 in which Justice Lauwers of the Ontario Superior Court of Justice noted as follow:

[18] As I observed in *Ivany v. Financiere Telco Inc.*, [2011] O.J. No. 4162, 2011 ONSC 2785, the proper definition of the term "cause of action" is somewhat elusive even though lawyers and judges routinely use it. Halsbury's Laws of England, 5th ed., vol. 11 (London: LexisNexis, 2008), at para. 21, explains:

'Cause of action' has been defined as meaning simply the facts the existence of which entitles one person to obtain from the court a remedy against another person. The phrase has been held from the earliest time to include every fact which is necessary to be proved to entitle the claimant to succeed, and every fact which the defendant would have a right to dispute."

Cause of action "has also been taken to mean that particular act on the part of the defendant which gives the claimant his

cause of complaint, or the subject matter or grievance founding the claim, not merely the technical cause of action.

The same facts or the same transaction or event may give rise to more than one effective cause of action." (Internal footnotes omitted)

[19] Note the two expressions used in this excerpt: "cause of action" and "technical cause of action". These identify the two senses in which lawyers and judges use the term "cause of action". Sometimes they are speaking of a factual matrix, that is, the factual cause of the plaintiff's complaint. At other times, however, lawyers and judges use the term "cause of action" to identify the legal nature of the claim; recognized causes of action in this legal sense include, for example, breach of contract, negligence, breach of fiduciary duty and so on, each of which has its own constituent elements. (Emphasis supplied)

The Court thus made the distinction between the *claim* on the one hand and *cause of action* on the other by holding cause of action as the factual matrix and claim being the legal basis upon which relief is based.

18. The claim must, however, be distinguished from relief which relates to the form of remedy a person seeks from the court. Relief or remedy is the means through which the cause of action is effectuated and the wrong is redressed (see Balbir Singh v. Atma Ram AIR 1977 Allahabad 211). Generally speaking, there are four types of reliefs available in a civil action i.e. declaratory remedy, equitable relief, restitution, recovery and financial damages. Relief, it may be stated, does not form part of the cause of action.

“19. The rule prevents the plaintiff from splitting the *claims* and the *reliefs* which are based on the same cause of action with the aim that a single cause should not be segregated among several suits. The objective appears to safeguard against the defendant being vexed twice in respect of the same cause of action underpinning the claim. In case of omission to sue or intentional relinquishment of a claim, the rule places a bar on bringing a subsequent action in regard thereto. Similarly, the rule compels a plaintiff to sue for all reliefs arising from the same cause of action and in case of his omission to do so he shall be barred from that relief in a subsequent suit except where he took the leave from the court.”

17. Even otherwise, allowing the subsequent suit to proceed on the basis of same cause of action would amount to offend the mandate of section 10 of the **Code**, which casts a duty upon the Court not to proceed with the trial of any suit in which the matter in issue directly and substantially in issue in a previously instituted suit between the same parties or between the parties under whom they or any of them claim, litigating under the same title where such suit pending in the same or any other Court in Pakistan having jurisdiction to grant the relief claimed or in any Court beyond the limits of Pakistan established or continued by the Central Government and having like jurisdiction, or before the Supreme Court. Order XXIII Rule 1 (3) also places almost a similar bar, which reads as under: -

Order XXIII Rule 1. Withdrawal of suit for abandonment of part of claim.— (1) At any time after the institution of a suit the plaintiff may, as against all or any of the defendants, withdraw his suit or abandon part of his claim.

(2) Whether the Court is satisfied—

(a) that a suit must fail by reason of some formal defect, or

(b) that there are other sufficient grounds for allowing the plaintiff to institute a fresh suit for the subject-matter of a suit or part of claim, it may, on such terms as it thinks fit, grant the plaintiff permission to withdraw from such suit or abandon such part of a claim with liberty to institute a fresh suit in respect of the subject-matter of such suit or such part of a claim.

(3) Where the plaintiff withdraws from a suit, or abandons part of a claim, with the permission referred to in sub-rule (2), he shall be liable for such costs as the Court may award and shall be precluded from instituting any fresh suit in respect of such subject-matter or such part of the claim.

(4) ...

(Underlining supplied for emphasis)

18. There is yet another important aspect that during the pendency of the first suit, the respondent moved an application under Order VI Rule 17 of the **Code** seeking amendment in the plaint, so as to introduce the claim of recovery of double of the amount of the earnest money for which he instituted the second suit and the application was dismissed by way of order dated 13th July, 2005. The said order was not challenged by the respondent and as such attained finality. It is an undeniable fact that earlier suit was later on dismissed for non-prosecution by way of order dated 18th January, 2006, which amounts to a decree in terms of Order IX Rule 9 of the **Code** and precludes the respondent to bring a fresh suit in respect of same cause of action. As already observed that in the connected R.F.A No.315 of 2023, **DHA**/appellant therein instituted a similar suit on the basis of same cause of action during the pendency of its previous suit, which was even not disclosed while instituting the second suit.

19. In the light of above noted threadbare discussion, we feel no cavil to observe that subsequent suit, in the circumstances, was not maintainable at all. After arriving at this conclusion, we are of the opinion that other aspects of the matter would become redundant. In the last, we are constrained to observe that a thing, which is not permissible directly, cannot

be allowed to be done through indirect means because it would amount to frustrate the ends of justice.

20. The nutshell of above discussion is that the suit for recovery instituted by the respondent was wrongly decreed by the learned Civil Judge and affirmed by the appellate Court through impugned judgment. We thus allow this revision petition and set aside the impugned judgment and decree dated 30th March, 2017 passed by the learned Additional District Judge, Rawalpindi as well as judgment and decree dated 12th May, 2012 passed by the learned Civil Judge, Rawalpindi. As a sequel, the suit instituted by the respondent shall stand dismissed. No order as to costs.

(Jawad Hassan)
JUDGE

(Mirza Viqas Rauf)
JUDGE

Approved for reporting

JUDGE

JUDGE